

		Plaintiff alleges he has ADHD, which limits major life activities, including his ability to work, but that he could perform his essential job duties with reasonable accommodations; and, that after he asked for accommodations and made a complaint about Vilander’s discriminatory comments about his disability, he was investigated and his employment was terminated. (See SAC at ¶¶ 9, 11, 17, 19, 40.) On demurrer, the court must liberally construe the complaint, accept all pleaded factual allegations as true, and draw all reasonable inferences in the plaintiff’s favor. (<i>Carroll v. City and County of San Francisco</i> (2019) 41 Cal.App.5th 805, 811.) Applying that standard, here, Court finds Plaintiff has sufficiently pleaded a claim for discrimination based on his alleged disability. <u>4th COA – Unlawful Harassment (Disability)</u> “To establish a prima facie case of unlawful harassment under FEHA, a plaintiff must show ‘(1) he was a member of a protected class; (2) he was subjected to unwelcome ... harassment; (3) the harassment was based on [the plaintiff’s membership in an enumerated class]; (4) the harassment unreasonably interfered with his work performance by creating an intimidating, hostile, or offensive work environment; and (5) [the employer] is liable for the harassment.’” (<i>Martin v. Board of Trustees of California State University</i> (2023) 97 Cal.App.5th 149, 170, citation omitted.) For the harassment to create a hostile work environment, plaintiff must show that “defendant’s conduct would have interfered with a reasonable employee’s work performance and would have seriously affected the psychological well-being of a reasonable employee.” “The law prohibiting harassment is violated ‘[w]hen the workplace is permeated with discriminatory intimidation, ridicule and insult that is “ ‘sufficiently severe or pervasive to alter the conditions of the victim’s employment and create an abusive working environment.’ ” ’” (<i>Ibid.</i>, citations omitted.) The Court finds Plaintiff’s allegations (e.g., being called a “spaz” or statements that Plaintiff used to take Ritalin) are not sufficient to show severe or pervasive conduct that altered the conditions of Plaintiff’s employment or interfered with his work performance. Accordingly, the demurrer to this claim is sustained. Unless Plaintiff can show that this defect can be cured, the Court intends to sustain the demurrer without leave to amend. Absent a showing that leave should be granted, Defendants are ordered to answer the SAC within 15 days of the hearing. <u>Motion to Strike</u> Defendants’ unopposed Motion to Strike Portions of Plaintiff’s SAC is granted. The references to 42 U.S.C. § 1983 in paragraphs 7 and 21 of the SAC are stricken. Case management conference is continued to February 22, 2027 at 10:00 a.m. in Department C27. Defendants are ordered to give notice of the aforementioned rulings/orders.
108	2018-01045532 Horwich - Trust	1. (P) Motion to Strike Costs 2. (P) Motion – Other 3. (P) Motion for Attorney Fees and Costs

MOTION TO STRIKE COSTS (ROA 2115)

Petitioners Jeffrey Horwich and Paul Horwich (collectively, "Petitioners") bring this motion (ROA 2115) to strike the Memorandum of Costs (ROA 2093) filed by Respondents Holly M. Emge, Emgee Law Group, and Chapman, DeLesk & Emge (collectively, the "Emge Respondents") in its entirety. Alternatively, Petitioners move to tax specific costs.

Motion to Strike Costs

Petitioners and the Emge Respondents dispute whether the Emge Respondents are "prevailing parties." However, such issue is irrelevant in a probate proceeding.

In a civil action, a prevailing party is entitled to recover costs as a matter of right. In a probate action, the trial court has discretion to award costs or not, as well as discretion to allocate costs between parties and estates.

Code of Civil Procedure section 1032(b) governs the award of costs in civil actions. It provides: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding."

Probate Code section 1002 governs costs in probate actions. It provides: "Unless it is otherwise provided by this code or by rules adopted by the Judicial Council, either the superior court or the court on appeal may, in its discretion, order costs to be paid by any party to the proceedings, or out of the assets of the estate, as justice may require." (Prob. Code § 1002.)

On 9/15/25, the court entered Judgment (ROA 2083) on Petitioners' Sixth Amended Petition (ROA 826). The Sixth Amended Petition brought three causes of action against the Emge Respondents, all of which were denied. The absence of the specific mention of an award for costs in the Judgment for the Emge Respondents is a mere oversight by the Court. Not only does the Judgment clearly reflect that the Emge Respondents are the prevailing parties, but the Court, in its discretion finds that the Emge Respondents should be awarded costs regardless.

The motion to strike the Emge Respondents' Memorandum of Costs (ROA 2093) in its entirety is **DENIED**.

Motion to Tax Costs

"In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face; 'if so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.'" (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29, citation omitted.)

"If the items in a cost memorandum appear proper, the verified memorandum is prima facie evidence the expenses were necessarily incurred by the defendant; the burden of showing an item is not properly chargeable or is unreasonable falls on the objector." (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 858.) On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. (*Ladas v. California State Auto. Ass'n.* (1993) 19 Cal.App.4th 761, 774–776.) Whether a cost item was reasonably necessary to the litigation is a question of fact for the

trial court to determine. (*Foothill-De-Anza Comm. College Dist. v. Emerich, supra*, 158 Cal.App.4th at pp. 29-30.)

Here, the court is satisfied that all costs listed in the Emge Respondent's Memorandum of Costs are proper. The inability to effectuate service does not negate the service costs incurred. Moreover, the fees incurred in preparing exhibits for trial is well justified in the Memorandum of Costs, as well as in the Opposition to this motion.

The motion to tax costs identified as items 33, 34, 73, 74, 76, 77, 78, and 79 is **DENIED**.

Counsel for the Emge Respondents is to ordered to give notice of this ruling.

MOTION TO STRIKE COSTS (ROA 2119)

Petitioners Jeffrey Horwich and Paul Horwich (collectively, "Petitioners") bring this motion (ROA 2119) to strike the Memorandum of Costs (ROA 2108) filed by Respondent Pamela Roossin ("Roossin") in its entirety.

The court exercises its discretion to consider the late-filed Opposition (ROA 2311) by Roossin.

Petitioners and Roossin dispute whether Roossin is a "prevailing party." However, such issue is irrelevant in a probate proceeding.

In a civil action, a prevailing party is entitled to recover costs as a matter of right. In a probate action, the trial court has discretion to award costs or not, as well as discretion to allocate costs between parties and estates.

Code of Civil Procedure section 1032(b) governs the award of costs in civil actions. It provides: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding."

Probate Code section 1002 governs costs in probate actions. It provides: "Unless it is otherwise provided by this code or by rules adopted by the Judicial Council, either the superior court or the court on appeal may, in its discretion, order costs to be paid by any party to the proceedings, or out of the assets of the estate, as justice may require." (Prob. Code § 1002.)

On 9/15/25, the Court entered Judgment (ROA 2083) on Petitioners' Sixth Amended Petition (ROA 826). The Sixth Amended Petition brought three causes of action against Roossin, all of which were denied. The absence of the specific mention of an award for costs in the Judgment for Roossin is a mere oversight by the Court. Not only does the Judgment clearly reflect that Roossin is the prevailing party, but the Court, in its discretion finds that Roossin should be awarded costs regardless.

The motion to strike Roossin's Memorandum of Costs (ROA 2108) in its entirety is **DENIED**.

Counsel for Roossin is to ordered to give notice of this ruling.

MOTION FOR ATTORNEY FEES (ROA 2101)

No tentative issued.